



CHAPTER lxxv.

An Act to empower the London and South Western Railway Company to construct new street and other works and to acquire additional lands to authorise the abandonment of existing works of the Company and the South Eastern Railway Company to confer further powers on the Company and other companies in respect of superfluous lands to provide for the transfer to the Company of the undertaking of the Budleigh Salterton Railway Company and for other purposes.

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[18th August 1911.]

WHEREAS it is expedient that the London and South Western Railway Company (in this Act called "the Company") be authorised to widen extend and improve their Waterloo Station and for that purpose or in connection therewith to acquire the lands houses and buildings and to execute the works hereinafter described :

And whereas it is expedient that the Company be authorised to execute the other works hereinafter described and to acquire additional lands for the general purposes of their undertaking and that the purchase by the Company of certain lands already acquired by them be sanctioned and confirmed :

And whereas it is expedient that provision be made for the abandonment of the branch railway of the South Eastern Railway Company authorised by the Charing Cross Railway Act 1859 and of the junction of the Company's existing railway at Waterloo Station with the said branch railway :

And whereas it is expedient that the time now limited for the completion of the railways hereinafter mentioned be extended as by this Act provided :

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And whereas it is expedient that further powers should be conferred upon the Company the Company and the London Brighton and South Coast Railway Company jointly the Company and the Midland Railway Company jointly and the Somerset and Dorset Railway Company and any joint committee on which the Company may be represented with respect to the lease or other disposal of lands acquired by such companies or company or such joint committees which are not or eventually may not be required for the purposes for which they have been so acquired :

And whereas by the Budleigh Salterton Railway Act 1894 (in this Act called "the Act of 1894") the Budleigh Salterton Railway Company (in this Act called "the Budleigh Company") were incorporated and were authorised to make in the county of Devon the railway therein described :

And whereas the undertaking of the Budleigh Company is worked by the Company under an agreement dated the ninth day of August one thousand eight hundred and ninety-four scheduled to and confirmed by the South Western Railway Act 1895 :

And whereas the Company and the Budleigh Company have entered into the agreement a copy of which is set forth in the schedule to this Act (and which agreement is in this Act referred to as "the scheduled agreement") for the sale to the Company of the undertaking of the Budleigh Company and it is expedient that such agreement be confirmed and carried into effect and that the said undertaking be accordingly transferred to and vested in the Company and that the Budleigh Company should be dissolved :

And whereas the existing capital of the Budleigh Company consists of sixty thousand pounds ordinary shares and the Budleigh Company have borrowed the sum of three thousand pounds by means of terminable mortgage debentures carrying interest at three per centum per annum for various sums amounting in the aggregate to one thousand pounds repayable on the thirty-first day of December one thousand nine hundred and twenty and for two sums of one thousand pounds each repayable on the twenty-sixth day of February one thousand nine hundred and twenty-one and the liability in respect of which mortgage debentures it has been agreed the Company should take over upon the transfer to them of the undertaking of the Budleigh Company :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and plans also of the lands which may be purchased or acquired by compulsion under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited for public inspection as follows (that is to say) As regards works and lands in the county of London with the clerk of the peace for that county as regards works and lands in the county of Dorset with the clerk of the peace for that county as regards works and lands in the county of Southampton with the clerk of the peace for that county as regards lands in the county of Middlesex with the clerk of the peace for that county and as regards lands in the county of Wilts with the clerk of the peace for that county and the said plans sections and book of reference respectively are in this Act referred to as "the deposited plans sections and book of reference":

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And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the South Western Railway Act 1911. Short title.

2. The following enactments (as far as they are applicable for the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):— Incorporation of general Acts.

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Section 4 and Parts II. and V. of the Railways Clauses Act 1863 relating respectively to extension of time and to amalgamation.

3. In this Act—

The several words and expressions to which meanings are assigned by the Acts in whole or in part incorporated herewith have the same respective meanings unless

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there be something in the subject or context repugnant to such construction Provided that for the purposes of the provisions of the Railways Clauses Consolidation Act 1845 and of section 4 of the Railways Clauses Act 1863 incorporated with this Act the widening by this Act authorised of the bridge carrying the Company's Poole and Bournemouth Junction Railway over the public road known as Bourne Valley Road shall be deemed to be a railway ;

The expression "the street works" means the new street and the alterations of streets by this Act authorised ; and

The expression "the Budleigh undertaking" means the railway authorised by the Act of 1894 and all other works and all lands property powers rights privileges and authorities of the Budleigh Company.

Enlargement
of Waterloo
Station.

4. The Company may widen extend and improve their Waterloo Station in the parish of Lambeth (on the deposited plans and in the deposited book of reference referred to as "the parish of Saint Mary Lambeth") in the metropolitan borough of Lambeth in the county of London and for that purpose or in connection therewith may exercise the following powers:—

Purchase of
lands.

(1) Subject to the provisions of this Act and in addition to any other lands which they are by this Act authorised to acquire the Company may enter upon take hold and use the whole or any part or parts of the lands houses and buildings in the said parish of Lambeth next hereinafter mentioned shown on the deposited plans and described in the deposited book of reference (that is to say) Lands houses and buildings bounded on the north by the viaduct of the South Eastern Railway Company's railway on the west by York Road on the east by Waterloo Road and on the south south-west and south-east by the road approach to Waterloo north station and other property of the Company :

Street
works.

(2) Subject to the provisions of this Act the Company may in the lines and in accordance with the levels shown on the deposited plans and sections—

(a) Construct in the said parish of Lambeth a new street commencing by a junction with Mephram

Street at a point in that street distant about half a chain from York Road and terminating in Waterloo Road at a point immediately to the south of the bridge carrying the South Eastern Railway over Waterloo Road; and

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(b) Alter the levels in the said parish of Lambeth of so much as is situate under the South Eastern Railway of Agnes Street Frances Street and the eastern portion of Mephram Street;

and in connection with or for the purposes of such works the Company may make and maintain all necessary and proper walls fences drains culverts approaches buildings works and conveniences and may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required Provided that the said new street shall be constructed of a clear width throughout of not less than thirty feet and in accordance with plans and sections submitted to and approved by the London County Council:

(3) The Company may close and stop up for public and other traffic the following street and parts of streets in the said parish of Lambeth (that is to say):—

Stopping up
of streets.

(a) So much of Mephram Street as lies between the commencement of the new street by this Act authorised and Robert Street;

(b) So much of Agnes Street and Frances Street as is situate on the south side of the South Eastern Railway; and

(c) The whole of Robert Street;

and as from the time of each such closing and stopping up respectively all public and other rights of way (if any) over such street and parts of streets shall be by this Act extinguished and the Company may appropriate and use for the purposes of their undertaking the site of the street and portions of streets stopped up Provided that no part of any such street shall be closed or stopped up unless the

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Company are owners in possession of all houses and lands abutting on that part of the street except so far as the owners lessees and occupiers of such houses and lands may otherwise agree :

Provided also that the Company shall not close or stop up permanently any of such streets until they shall have completed the construction of the said new street and opened the same for public use :

Provided further that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to stop up ways during execution of works.

5. The Company during the making and for the purposes of the street works may within the limits of deviation and of lands to be taken shown upon the deposited plans stop up or cause to be stopped up temporarily all or any part of the carriageways or footways of any street road passage or place which they shall think necessary for the purposes of this Act to be so stopped up and for that purpose may put or cause to be put up sufficient palisades bars posts and other erections provided that reasonable access to houses still in occupation if any shall be preserved.

Power to make subsidiary works in connection with street works.

6. Subject to the provisions of this Act the Company in connection with the street works and as part and for the purposes thereof may within the limits of deviation and of lands to be taken shown on the deposited plans make junctions and communications with any existing streets roads passages or places which may be intersected or interfered with by or be contiguous to the street works and may make alterations of the levels of any existing streets roads passages or places for the purpose of connecting the same with the new street to be made or the streets to be altered under the powers of this Act and may raise lower or alter or remove any steps or approaches to houses or property contiguous thereto or any arch cellar or area under or adjoining any roadway or footway but full compensation shall be made to the owners lessees and occupiers (if any) whose property shall be injuriously affected by the exercise of the powers of this section.

7. Subject to the provisions of this Act the Company may for any purpose in connection with the street works upon any lands acquired by them under the powers of this Act and also in any street or road within the limits of deviation or of lands to be taken shown on the deposited plans raise sink or otherwise alter remove or interfere with the position of any sewer drain water pipe gas pipe or hydraulic pipe belonging to or connected with any house or building adjoining or near to such works and also any main or other pipe laid down or used for carrying a supply of water or gas or for hydraulic purposes or any pipe tube wire or apparatus laid down or used for telegraphic telephonic or electric purposes and may remove any other obstruction making in case of alteration proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit to any company person or body and making reasonable compensation to any company person or body who suffers damage by any such alteration Provided always that before the Company alter the position of any such sewer drain pipe tube wire or apparatus (in this section referred to generally as "apparatus") they shall (except in cases of emergency) give to the company person or body (in this section called "the owner") to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Company) of the owner unless the owner refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and the Company shall execute such work to the reasonable satisfaction of the engineer of the owner If any difference arise between the Company or their engineer and the owner or his engineer touching the amount of any costs expenses or charges under the provisions of this section to be paid by the Company to the owner or touching any work matter or thing with reference to any such apparatus under such provisions to be done or executed by the Company or the mode of doing or executing the same such difference shall be settled by arbitration by an engineer to be agreed upon by the engineer of the Company and the owner's engineer or failing agreement by such engineer as shall on the application of the engineer either of the Company or of the owner be named by the President of

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Power to
alter drains
pipes &c.

A.D. 1911. the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration:

Provided also that the Company shall not raise sink or otherwise alter or interfere with any pipe tube wire or other apparatus laid down or used for telegraphic or telephonic purposes by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Limits of deviation for street works.

8. In constructing the street works the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding three feet.

Time for completion of street works.

9. If the street works are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the street works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Dedication to public of new and altered streets.

10. The Company on the completion of the street works may and shall open and dedicate such new or altered streets to the public and thereafter the sole power authority liability and duty of maintaining paving repairing cleansing sewerage and lighting the same shall be vested in and imposed upon the mayor aldermen and councillors of the metropolitan borough of Lambeth.

Deficiency in rates in Lambeth to be made good.

11. If and while the Company are possessed under this Act of any lands in the parish of Lambeth assessed or liable to be assessed in that parish to any general rate they shall from time to time until the works or the purposes for which the Company may have acquired such lands are completed and assessed or liable to be assessed in that parish to such rate be liable to make good the deficiency in the assessment for the said rate by reason of those lands being taken or used for the purposes of the said works and the deficiency shall be computed according to the rental at which those lands with any buildings thereon are now rated and on demand the Company shall in each case pay the deficiency to the collector of the said general rate.

For protection of South Metropolitan

12. For the protection of the South Metropolitan Gas Company (in this section referred to as "the gas company") the

following provisions shall unless otherwise agreed in writing A.D. 1911.
between the Company and the Gas Company have effect (that Gas Com-
is to say) :— pany.

- (1) Where the Company under the powers of this Act stop up temporarily any street or part of a street they shall provide access for the officers and servants of the gas company for the purpose of enabling them to repair or renew any of the apparatus of the gas company :
- (2) The Company shall not under the powers of this Act execute any work or do any thing so as to cause any pipe belonging to the gas company to be left in any part with a covering of less than two feet six inches or more than the covering now existing unless the Company provide special means of access to the same to the reasonable satisfaction of the engineer of the gas company :
- (3) If within seven days after the receipt by the gas company of a notice under the section of this Act of which the marginal note is "Power to alter drains pipes &c." the gas company so elect that company may themselves execute all such alterations to their apparatus as may from time to time be necessary and the costs of executing such alterations shall be repaid by the Company to the gas company Provided always that such alterations shall be carried out in accordance with the directions and to the reasonable satisfaction of the engineer of the Company :
- (4) If any question shall arise between the Company and the gas company under this section the same shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

13.—(1) The South Eastern Railway Company may abandon and discontinue the use of their branch railway authorised by the Charing Cross Railway Act 1859 or any part thereof and the Company may abandon and discontinue the use of the junction of their existing railway at the north-east end of their Waterloo Station with the said branch railway.

Abandon-
ment of
portions of
works of
South East-
ern Railway
Company
and Com-
pany.

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(2) The Company so far as regards their said junction and the South Eastern Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (in this section called "the managing committee") or either of them so far as regards the said branch railway may hold and use for the general purposes of their respective undertakings or of the undertaking of the managing committee the site and soil of the respective junction and branch railway or any part thereof so to be abandoned and for the same purposes the South Eastern Railway Company or the managing committee may maintain and use the bridges carrying the said branch railway over Waterloo Road and Cornwall Road.

(3) The Company shall provide and maintain a suitable and sufficient means of communication over Waterloo Road for pedestrians between the railway of the South Eastern Railway Company and the Waterloo Station of the Company.

(4) The Company and the South Eastern Railway Company or the managing committee may enter into vary or rescind agreements with reference to the matters aforesaid.

Widening of
bridge at
Poole.

14. Subject to the provisions of this Act the Company may make and maintain in the line and according to the levels shown on the deposited plans and sections the work hereinafter in this section described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose. The work hereinbefore in this section referred to and authorised by this Act will be situate in the parish and borough of Poole in the county of Dorset and is—

A widening on its northern side for a distance of one chain or thereabouts from its northern face of the bridge carrying the Company's Poole and Bournemouth Junction Railway over the public road known as Bourne Valley Road where the same passes under the said railway near Branksome Station.

Height of
bridge.

15. The Company may make the arch of the said widening of the bridge at Poole over the said public road known as Bourne Valley Road of any height not less than fourteen feet.

16. The following provisions for the protection of the Bournemouth Gas and Water Company (hereinafter referred to as "the protected company") shall be observed and carried into effect (that is to say):—

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For protection of
Bournemouth Gas
and Water
Company.

- (1) If in the execution of any of the works by this Act authorised it shall be necessary in any way to alter the position of or otherwise interfere with any gas or water mains pipes syphons plugs or other works (hereinafter called "apparatus") belonging to or connected with the undertaking of the protected company the Company before commencing the said works shall give fourteen days' previous notice in writing to the protected company of their intention to commence the same and all supports alterations and apparatus together with all such other protective works as the engineer of the protected company may consider necessary shall be carried out under the superintendence and to the reasonable satisfaction of the engineer of the protected company or the protected company if they so elect may themselves make any such alteration of their apparatus together with any protective works as aforesaid as may be necessary and the cost thereof shall be borne and paid by the Company :
- (2) The Company shall make good all damage done to the apparatus of the protected company by the disturbance thereof and shall make full compensation to the protected company for any loss or damage which they may sustain by reason of such interference as aforesaid :
- (3) If the Company take any of the apparatus of the protected company or render any of the same useless the Company shall unless substituted apparatus is provided by the Company pay to the protected company the value thereof and the same shall thereupon become the property of the Company :
- (4) If any difference arise between the Company and the protected company with reference to any of the matters provided for by this section such difference shall be determined by an arbitrator to be appointed by the Board of Trade on the application of the Company or the protected company.

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New foot-
path in
parish of
West Meon.

17. The Company may stop up and discontinue for traffic of every description so much of the footpath in the parish of West Meon in the rural district of Droxford in the county of Southampton as crosses the properties numbered on the Ordnance map (scale $\frac{1}{2500}$ 1909 edition) 359 and 360 in the said parish and the Company's railway and in lieu thereof the Company may construct in the said parish in the manner shown on the deposited plans a new footpath from the north-western corner of the aforesaid property numbered 360 to a point in the public road which passes under the said railway and leading from West Meon to East End at or near the north-west corner of the property numbered on the said map 363 in the said parish and may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as may be required for that purpose.

Power to
take addi-
tional lands
for general
purposes.

18. Subject to the provisions of this Act and in addition to the other lands which they are by this Act authorised to acquire the Company may for the general purposes of their undertaking enter upon take hold and use the whole or any part or parts of the lands next hereinafter mentioned shown on the deposited plans and described in the deposited book of reference and may hold and use for those purposes such of the said lands as have already been purchased or acquired by them Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be entered upon and taken appropriated and used are as follows:—

IN THE COUNTY OF MIDDLESEX.

Land in the parish and urban district of Feltham abutting on the south side of the Company's Richmond and Windsor Railway and situated between the east side of the public road which crosses over the railway immediately on the east side of Feltham Station and the eastern boundary of the said parish and forming part of the properties numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1896) 52 82 83 and 86 in that parish:

A strip of land in the parish of Old Brentford in the urban district of Brentford at Kew Bridge station abutting on the south side of the Company's loop line and on the east side of Kew Bridge Road.

IN THE COUNTY OF SOUTHAMPTON.

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A strip of land with houses and buildings and portion of road in the parish of Brockenhurst in the rural district of Lymington abutting on the west side of the Company's Southampton and Dorchester Railway and extending between the footbridge carrying the public footpath over the railway at the south-west end of Brockenhurst Station and the south-westernmost boundary of the enclosure numbered on the Ordnance map (scale $\frac{1}{2500}$ 1909 edition) 257 in the said parish.

IN THE COUNTY OF DORSET.

Land in the parish of East Stoke in the rural district of Wareham and Purbeck abutting on the south side of the Company's Southampton and Dorchester Railway and extending between points distant respectively $1\frac{1}{2}$ and $4\frac{1}{2}$ chains measured in an easterly direction along that railway from the centre of the level crossing of the public road from St. Mary's Church to Stoke Mill over that railway :

And the Company may divert in manner shown on the deposited plans the footpath which now crosses the said land and may stop up and discontinue for traffic of every description so much of the existing footpath as crosses such land.

IN THE COUNTY OF WILTS.

Lands and buildings and portions of roads in the parish and borough of New Sarum—

(a) Abutting on the north-west side of the Company's Basingstoke and Salisbury Railway and situate between the property of the Company and the eastern side of the allotment gardens adjoining St. Paul's church;

(b) Abutting on the north-west side of the Company's Basingstoke and Salisbury Railway and situate between that railway and Nelson Road and extending between points distant respectively about 3 chains and 14 chains measured along that road in a south-westerly direction from the bridge carrying the said road over the River Avon;

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(c) Abutting on the south-east side of the Company's Basingstoke and Salisbury Railway and being part of the property numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1901) 34 in the said parish :

And after the completion of the purchase of the said land (a) the Company may stop up and discontinue for traffic of every description so much of Meadow Road as extends from the south-east extremity of such road for a distance of about thirteen yards and thereupon all public and other rights of way (if any) over such portion of road shall be by this Act extinguished but such portion of road shall not be stopped up unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road so stopped up.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Owners may be required to sell part only of certain premises.

19. And whereas in the exercise by the Company of the powers of this Act it may happen that a portion only of the property numbered on the deposited plans 9 in the parish of Brockenhurst in the rural district of Lymington in the county of Southampton will be sufficient for the purposes of the Company and that such portion or some other portion less than the whole can be severed from the remainder of the said property without material detriment thereto Therefore the following provisions shall have effect:—

(1) The owner of and persons interested in the said property or each or any of them are hereinafter included in the term "the owner" :

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of the said property the owner shall fail to notify in writing to the Company that he alleges that such portion cannot

be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the said property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the said property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the said property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :

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- (6) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the said property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that the said property or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any part of the said property.

Correction
of errors &c.
in deposited
plans and
book of re-
ference.

20. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission

and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the town clerk of the metropolitan or other borough or the clerk to the district council for the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk or clerk to the district council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

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21. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

22. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Company have effect (that is to say):—

For protection of Metropolitan Water Board.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not purchase any part of the strip of land now vested in the board and forming part of the lands in the parish and urban district of Feltham referred to in the section of this Act of which the marginal note is "Power to take additional lands for general purposes" but the Company may take and the board shall if so required by the Company grant and convey to them an easement or right of constructing maintaining and using over or across the said strip of land certain sidings and other works in connection with their railway;

The purchase money and compensation to be paid by the Company to the board for any such easement or right as aforesaid shall in default of agreement be determined in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

- (2) If the Company intend to use the said strip of land for railway purposes they shall give to the board

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notice in writing of such their intention and shall not so use the said strip of land without the consent of the board until after the expiration of six months from the giving of such notice. The board may at any time within the said period of six months construct under that part of the said strip of land which the Company intend to use for railway purposes and over which the said easement or right extends a culvert in extension of the existing culvert of the board constructed under the railway of the Company and of the same dimensions and materials as such existing culvert the gradient of such culvert to be not steeper than 1 in 3,000 rising from the southern end of the existing culvert and may take down the existing ventilating shaft of the board adjoining the southern boundary of the said railway and re-erect the same at any point on the property of the board southward of that portion of the said strip of land over which the said easement or right extends:

- (3) The board may for all or any of the purposes of the last preceding subsection of this section enter upon and open up all or any part of the said strip of land notwithstanding the grant of the said easement or right thereover and the Company shall not during the said period of six months without the consent in writing of the board construct erect or place upon any part of the said strip of land any work building or structure so as to interfere with or prevent the construction by the board of such works as aforesaid:
- (4) The Company shall forthwith on demand repay to the board the amount of the costs charges and expenses incurred by the board in or in connection with the works referred to in subsection (2) of this section and in or in connection with any alteration of the existing mains laid in the said strip of land which may be necessary by reason or in consequence of the execution of the said works and the provision of any substituted mains or apparatus which it may be necessary to provide temporarily during the execution of such works for the purpose of continuing the supply of water:

(5) Notwithstanding the grant to the Company of any such easement or right as aforesaid the Company shall at all times afford to the board all reasonable facilities for the purposes of maintaining repairing or renewing the said intended culvert: A.D. 1911.

(6) Whenever by reason or in consequence of the stopping up under the powers of this Act of any street or road any mains pipes hydrants syphons plugs or other works (in this section referred to as "apparatus") of the board situate in or under the street or road so stopped up shall be rendered derelict or unnecessary the Company shall forthwith after such stopping up pay to the board such a sum as may be agreed between the board and the Company or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of—

(A) The apparatus situate in and under the street or road so stopped up; and

(B) Any apparatus of the board connected with the property of the board and used exclusively for the purposes of the supply of water to any premises to which a supply is furnished by means of the apparatus in and under the street or road stopped up;

and any such apparatus shall thereupon become the property of the Company:

(7) In addition to the payment referred to in the last preceding subsection of this section the Company shall pay to the board their charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the board and of and incidental to any other works or thing rendered necessary or expedient in consequence of any apparatus of the board being rendered derelict or unnecessary by the stopping up or alteration of any street or road:

(8) Notwithstanding the stopping up temporarily of any road or street under the powers of this Act the board their engineer workmen and others in their employ shall at all times have all such rights of access to all or any of the apparatus of the board situate in or under

A.D. 1911.

any such road or street as they had immediately before the passing of this Act and shall be at liberty to do all such works at their own expense in and upon such road or street as may be necessary for inspecting repairing maintaining removing or extending such apparatus :

- (9) Not less than twenty-one days before commencing any of the works by this Act authorised in any street or road in or under which any apparatus of the board is situate the Company shall deliver to the board a plan section and description of such works describing the proposed manner of executing the same and showing the whole of the works proposed to be executed in connection therewith :
- (10) The board may at any time within twenty-one days of the receipt of such plan section and description by notice in writing intimate to the Company their requirements so far as such works involve interference with the apparatus of the board and they may require the Company to provide and lay down such works and apparatus as may be specified by the board and to remove raise sink or otherwise alter the position of the apparatus and support the same and to substitute temporarily or otherwise other apparatus in such manner as may be specified by the board and to lay or place under any apparatus cement concrete or other like substance Any difference between the board and the Company under this subsection shall be determined by arbitration as hereinafter provided Provided that if the board shall not within the said period of twenty-one days give any such notice in writing to the Company as aforesaid they shall be deemed to have no requirements to intimate to the Company :
- (11) The Company shall not construct such works as aforesaid except in strict accordance with the said plan section and description delivered to the board and shall carry out all works in connection with the apparatus of the board as may be approved by the board or settled by arbitration :
- (12) Not less than fourteen days before commencing the construction of any such works as aforesaid the Company shall give to the board notice in writing of their

intention to commence such construction and shall state in such notice the place and time at which they propose so to commence and if within seven days after the receipt of such notice the board shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connection with any apparatus of the board as provided by this section it shall be lawful for the board instead of the Company to lay down such apparatus or execute such works and the cost incurred by them in so doing shall on demand be repaid to the board by the Company :

- (13) The Company shall not raise sink or otherwise alter the position of any apparatus of the board or alter the level of any street or road in which any such apparatus is situate so as to leave when the works are completed over such apparatus a covering of less than three feet unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the satisfaction of the board or more than five feet unless the Company in such case provide special means of access to the same to the satisfaction of the engineer of the board :
- (14) The board may if they deem fit employ watchmen or inspectors to watch any works to be executed by the Company under this section or any other provision of this Act whereby any apparatus of the board will or may be interfered with or affected and the reasonable expenses thereof shall be borne by the Company and be paid by them upon demand to the board :
- (15) The expenses of all repairs or renewals of any apparatus of the board or any works in connection therewith which may at any time within 12 months from the completion of the works of the Company be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any of them or rendered necessary by reason of the subsidence resulting from the works of the Company whether during the construction of such works or at any time within 12 months thereafter

A.D. 1911.

shall be borne by the Company and paid by them on demand to the board :

(16) The provisions of this section with respect to the alteration or removal of or interference with any apparatus of the board shall have effect notwithstanding any other provision of this Act which may be inconsistent therewith but subject as aforesaid the provisions of this section shall be in addition to and not in substitution for or in derogation of any other provision of this Act to the benefit of which the board would otherwise have been entitled :

(17) The provisions of sections 21 and 23 of the Railways Clauses Consolidation Act 1845 shall apply with respect to any disturbance of or interference with the mains pipes or works of the board and to any interruption in the supply of water resulting from the execution by the Company of any such works as are referred to in this section :

(18) If any difference shall arise between the board and the Company with respect to any matters under this section or concerning any of the said plans sections and descriptions the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

For protection of corporation of New Sarum.

23. For the protection of the mayor aldermen and citizens of the city of New Sarum (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed between the Company and the corporation have effect (that is to say):—

(1) Before constructing any embankment or other works upon the site of the existing 12-inch sewer of the corporation in the lands numbered 1 and 2 on the deposited plans for the parish of New Sarum the Company shall divert the said sewer to the position near the northern and western boundaries of the said lands shown in red lines upon a plan signed in duplicate by W. J. Goodwin the engineer of the

* corporation and by John Wykeham Jacomb-Hood the engineer of the Company and in accordance with sections and specifications to be previously submitted to and reasonably approved by the corporation. Provided that if the corporation fail to approve or disapprove or to state their requirements in writing with respect to such sections and specifications within 21 days after the deposit of such sections and specifications at the office of the town clerk in Salisbury they shall be deemed to have approved thereof. The work of diverting the said sewer and all works rendered necessary by reason of such diversion shall be executed at the expense in all things of the Company and under the superintendence and to the reasonable satisfaction of the engineer of the corporation: A.D. 1911.

- (2) If the corporation shall elect to carry out the said works of diverting the said sewer and shall give notice in writing of such intention to the Company the corporation shall be at liberty to execute the works in such manner as they shall in their reasonable discretion think fit but at the expense in all things of the Company and the Company shall at their expense provide the necessary easements for carrying out the said works:
- (3) The Company shall pay the reasonable costs charges and expenses of the corporation in connection with the approval of the said plan sections and specifications and superintendence as aforesaid:
- (4) The Company shall not interfere with the 15-inch storm-water sewer of the corporation shown by a blue line on the said plan nor make nor place any embankment or other work over the same or the diverted 12-inch sewer:
- (5) The corporation shall be entitled by their engineer surveyor servants and workmen as and when and so far as may be necessary to enter upon the lands and works of the Company for the purpose of maintaining examining repairing renewing relaying altering or enlarging the said sewers and the Company shall give to the corporation all reasonable facilities for effecting such purpose:

A.D. 1911.

(6) The corporation shall not be liable for and shall be indemnified by the Company against all damage and injury which may be caused by the breaking bursting or leaking of the said sewers by reason of the failure of any of the works of the Company:

(7) Before the Company appropriate for the purposes of their undertaking the south-east extremity of Meadow Road they shall to the satisfaction of the corporation fence off the same and make and kerb a suitable footpath at the new end of the road immediately to the north of the said fence and also remove the existing ventilating shaft and gas lamp to another approved position making good the gas service and the connection with the sewer:

(8) The Company shall not at any time interfere with the free flow of water in the stream running through the land numbered 4 on the said deposited plans and before constructing any works over the said stream the Company shall provide in accordance with plans sections and specifications to be reasonably approved by the corporation a culverted waterway of a capacity not less than the waterway of the culvert through which the stream now passes under the railway and works of the Company:

(9) Any difference which may arise between the corporation and the Company under the provisions of this section shall unless otherwise agreed be settled by two arbitrators under the provisions of the Arbitration Act 1889.

Lands for extraordinary purposes.

24. The Company may by agreement from time to time purchase additional land for any of the extraordinary purposes specified in the Railways Clauses Consolidation Act 1845 connected with their general undertaking not exceeding in quantity twenty acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land taken under the powers of this section.

Persons under disability may grant easements &c.

25. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the

Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

A.D. 1911.
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26. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to
Company to
enter upon
property for
survey and
valuation.

27. The tribunal to whom any question of disputed purchase-money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of

Costs of ar-
bitration in
certain cases.

A.D. 1911. — the case Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings acquired by Company.

28. In settling any question of disputed purchase-money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirty-first day of October one thousand nine hundred and ten if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

As to private rights of way over lands taken compulsorily.

29. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Stopping up footpaths in case of diversion &c.

30. Where this Act authorises the making of a new footpath or the diversion of an existing public footpath and the stopping up of an existing public footpath or any portion thereof such stopping up shall not take place until two justices shall have certified that the new footpath has been completed to their satisfaction and is open for public use As from the date of the said certificate all rights of way over or along the existing footpath or portion thereof shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

31. The new and diverted footpaths to be made under the authority of this Act shall unless otherwise agreed or otherwise specially provided for by this Act when made and completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portions of the same footpaths now devolves.

A.D. 1911.
As to repair
and maintenance of new
and diverted
footpaths.

32. The purchase by the Company of the lands houses and property hereinafter mentioned is hereby sanctioned and confirmed (that is to say) :—

Confirming
purchase of
lands by
Company.

IN THE COUNTY OF LONDON.

Lambeth Four houses and lands in the said parish of Lambeth being Nos. 42 44 46 and 52 Wandsworth Road.

IN THE COUNTY OF SURREY.

Woking Land in the parish and urban district of Woking containing 7 acres 2 roods and 20 perches and lying between the Company's main line and the Guildford Junction Railway and forming part of the properties numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1896) 399 and 400 in the said parish.

IN THE COUNTY OF SOUTHAMPTON.

Southampton A house and land in the parish of St. Mary in the county borough of Southampton being No. 19 Chapel Road :

Botley A strip of land in the parish of Curdrige in the rural district of Droxford abutting on the south side of the Company's Bishopstoke and Fareham Railway at Botley Station containing about 1 rood 8 perches and extending along the northern boundary and forming part of the property numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1896) 358 in the said parish and being of an average width of about 6 yards.

IN THE COUNTY OF WILTS.

Alderbury Two strips of land in the parish of Alderbury in the rural district of Salisbury containing together about 32 square perches abutting respectively on the eastern and western sides of the Company's Salisbury and Dorset Railway and being of the width of two yards or there-

A.D. 1911:

abouts respectively and forming part of the properties numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1901) 292 and 293 in the said parish respectively and extending from the southern boundary of the said parish for a distance of about 12 chains in a northerly direction.

IN THE COUNTY OF DEVON.

Offwell A triangular piece of land in the parish of Offwell in the rural district of Honiton abutting on the south side of the Company's Yeovil and Exeter Railway containing about 35 square perches and being part of the property numbered on the Ordnance map (scale $\frac{1}{2500}$ 2nd edition 1904) 215 in the said parish and which piece of land is bounded on the north by the northern boundary of the aforesaid property numbered 215 on the south-east by the south-eastern boundary of that property and on the south by an imaginary straight line drawn from a point in the northern boundary of such property distant 5 chains measured in a westerly direction along that boundary from the easternmost corner of that property to a point in the south-eastern boundary of that property distant $1\frac{1}{2}$ chains measured in a south-westerly direction along such boundary from the said easternmost corner of such property:

Exeter Two houses and lands in the parish and county borough of Exeter being Nos. 54 and 55 Queen Street.

And the expenditure of money by the Company in or in connection with the purchase or acquisition of the said lands houses and property or any of them is hereby sanctioned and confirmed and the Company may hold and use the said lands houses and property for any of the purposes of their undertaking provided that the said lands shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section.

For protection of London County Council.

33. The following provisions shall unless otherwise agreed have effect for the protection of the London County Council (hereinafter called "the council") (that is to say):—

- (1) Notwithstanding anything contained in this Act subsections 3 and 4 of section 13 of the South Western Railway Act 1906 are incorporated with and form part of this Act and shall extend and apply to any

lands in the administrative county of London (hereinafter called "the county") acquired or used under the powers of this Act or the purchase of which is thereby confirmed and to any works matters or things by this Act authorised as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this Act with reference thereto :

A.D. 1911.

(2) The London Building Acts 1894 to 1909 and any Act amending the same and any byelaws and regulations in force thereunder shall (subject to any special exemptions in favour of railway companies therein contained) apply to the execution of any works by the Company on any lands in the county acquired held or used under the provisions of this Act :

(3) Except as in this Act expressly provided the Company shall not encroach upon any part of the surface of any street or footway in the county or without the consent of the council erect or maintain any building or structure beyond the general line of buildings in any street part of a street place or row of houses in the county :

(4) If the Company shall under the powers of this Act permanently stop up any street or thoroughfare in the county they shall forthwith give notice in writing thereof to the council.

34. The period limited by the South Western Railway Act 1906 for the completion of the Railway No. 2 and the Railway No. 4 authorised by section 6 subsections (b) and (c) of that Act is hereby extended and the powers of the Company in that behalf may be exercised within but shall not be exercised after the expiration of three years from the twentieth day of July one thousand nine hundred and eleven.

Extension of time for completion of railways authorised by Act of 1906.

35. And whereas lands have from time to time been purchased or acquired by the Company the Company and the London Brighton and South Coast Railway Company jointly the Company and the Midland Railway Company jointly and the Somerset and Dorset Railway Company respectively and by joint committees incorporated or constituted by Act of Parliament on which the Company may be represented adjoining or near to railways or stations belonging or leased to such companies or

Power to Company and other companies and joint committees to lease or dispose of lands.

A.D. 1911. — company or belonging to or managed by such joint committees but such lands are not immediately or may not hereafter be required for the purposes of the respective undertakings of such companies or company or of such joint committees as the case may be and it is expedient that further powers should be conferred upon such companies or company and such joint committees respectively with respect to such lands. Therefore notwithstanding anything to the contrary contained in the Lands Clauses Consolidation Act 1845 or any Act relating to any or either of the said companies or any such joint committee with which that Act is incorporated the Company the Company and the London Brighton and South Coast Railway Company jointly the Company and the Midland Railway Company jointly or the Somerset and Dorset Railway Company or any such joint committee as aforesaid shall not be required to sell or dispose of any such lands but may retain hold or use or may lease or otherwise dispose of such lands.

Confirming
agreement
for sale to
Company of
Budleigh
undertaking.

36.—(1) The scheduled agreement between the Budleigh Company and the Company for the sale and transfer to the Company of the Budleigh undertaking as set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto and may and shall be carried into effect accordingly.

Transfer of
Budleigh
undertaking.

(2) On and as from the first day of January one thousand nine hundred and twelve (which date is in this section referred to as "the date of transfer") the Budleigh undertaking shall subject to the provisions of this Act and the scheduled agreement be and is hereby transferred to the Company and as from that date the Budleigh Company shall be and is hereby dissolved and for the purposes of Part V. of the Railways Clauses Act 1863 the Budleigh Company shall be deemed to be amalgamated with the Company by this Act and this Act shall be deemed to be the special Act. Provided that none of the provisions of the Act of 1894 or other instruments having the effect of Acts of Parliament so far as the same or any of them relate to the constitution directors audit or accounts of the Budleigh Company or relating to the raising of money by shares or borrowing shall apply to the Company. Provided also that the Budleigh Company shall be deemed to exist for the purpose of winding up their affairs and such dissolution and transfer as aforesaid shall not deprive the directors of the Budleigh Company of all or any powers under their said Acts or otherwise which may be necessary or convenient for the winding up of the affairs and dissolution of the Budleigh Company.

(3) From and after the date of transfer the Company but subject to the terms and conditions of the scheduled agreement and of this Act shall be subject to and perform conform and be liable to all contracts agreements duties obligations debts charges claims and demands whatsoever with respect to the Budleigh undertaking to which the Budleigh Company if the sale or transfer did not take effect would be subject or liable.

A.D. 1911.
Company
to perform
duties of
Budleigh
Company as
to Budleigh
undertaking.

(4) The Company shall on and after the date of transfer take over and assume the liability in respect of the terminable mortgage debentures of the Budleigh Company referred to in the preamble of this Act amounting in the aggregate to three thousand pounds and the interest thereon as from the date of transfer and the same shall be and become a charge on the undertaking of the Company ranking pari passu with the debenture stock to be created and issued by the Company under the powers of this Act.

As to ter-
minable
mortgage
debentures
of Budleigh
Company.

(5) From and after the date of transfer the railway of the Budleigh Company shall for the purposes of rates and charges for merchandise traffic be deemed to have formed part of the undertaking of the Company at the date of the passing of the London and South Western Railway Company (Rates and Charges) Order Confirmation Act 1891.

As to rates
for merchan-
dise traffic.

(6) Notwithstanding the transfer to and vesting in the Company of the Budleigh undertaking the clerks officers and servants of the Budleigh Company shall not be or become clerks officers or servants of the Company and the Company shall not be liable to discharge any obligations which may be due to any such clerk officer or servant.

As to officers
of Budleigh
Company.

(7) As soon as conveniently may be after the passing of this Act the Company as part of the debenture stock which under the powers of any previous Act or Acts they are authorised to create and issue shall create and the directors of the Company shall issue for the purposes of the transfer to the Company of the Budleigh undertaking three per centum debenture stock of the Company to the nominal amount of sixty thousand pounds Such debenture stock which is in this section referred to as "the debenture stock" shall form part of the three per centum consolidated debenture stock of the Company.

Debenture
stock to be
created for
purposes of
transfer of
Budleigh
undertaking.

(8) The debenture stock shall be appropriated to or for the benefit of the registered proprietors of the ordinary shares of the Budleigh Company as follows (that is to say) For every one

Allotment of
debenture
stock to
shareholders

A.D. 1911. hundred pounds nominal amount of such shares one hundred pounds nominal amount of the debenture stock and so in like proportion for any greater or less sum than one hundred pounds of such shares and the stock so allotted shall be in exchange for and in full satisfaction of the rights of the proprietors of ordinary shares of the Budleigh Company in respect of such shares.

As to closing of registers of shareholders and mortgage debenture holders of Budleigh Company.

(9) It shall be lawful for the directors of the Budleigh Company to close and they shall close the registers of transfers of shares in the capital and of mortgage debentures of the Budleigh Company on the thirty-first day of December one thousand nine hundred and eleven and the secretary of the Budleigh Company shall make up and deliver to the Company as soon as possible after such date the registers of transfers and registers of shareholders and mortgage debenture holders of the Budleigh Company and the shareholders' and mortgage debenture holders' address book and the persons who appear by such registers of shareholders and mortgage debenture holders to be the proprietors of shares in the capital and of mortgage debentures of the Budleigh Company or their respective executors administrators successors or assigns shall be respectively considered the shareholders and mortgage debenture holders of the Budleigh Company for the purpose of the issue of the debenture stock under this Act and for the purpose of registration of the mortgage debentures of the Budleigh Company in the books of the Company and any transfer of shares or mortgage debentures which is not duly registered in such registers of transfers prior to the thirty-first day of December one thousand nine hundred and eleven shall as between the Company and the party claiming under the same be of no effect.

Registration of debenture stock.

(10) As soon as conveniently may be after the delivery to them of the said registers of shareholders and mortgage debenture holders the Company shall register in the names of the holders of the ordinary shares of the Budleigh Company the amount of the debenture stock to which they will be entitled under this section and shall deliver to such shareholders certificates for the debenture stock placed in their respective names and shall register such mortgage debentures of the Budleigh Company taken over by the Company in the books of the Company Provided that the Company shall not be bound to place any debenture stock in the name of any such shareholder or deliver to him any certificate or to register any mortgage debenture until in the case of such shareholder he shall have delivered up

to the Company to be cancelled his certificate of proprietorship of the shares for which the debenture stock is to be exchanged or in the case of the holder of any such mortgage debenture he shall have delivered up to the Company his mortgage debenture for registration and endorsement or until they respectively shall have proved to the satisfaction of the Company the loss or destruction thereof. A.D. 1911.

(11) Every portion of the debenture stock which in accordance with this section is appropriated to proprietors of shares of the Budleigh Company shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and encumbrances as immediately before the date of transfer affected the shares for which the same is exchanged and every deed or other instrument and every testamentary or other disposition shall take effect with reference to the whole or as the case may be a proportionate part of the debenture stock given in exchange and the Company shall not be concerned to see to the application of such stock or of the proceeds of sale of such stock or be answerable for the misapplication or non-application thereof respectively. Debenture stock to be subject to same trusts &c.

(12) Forthwith after the date of transfer the Budleigh Company shall proceed to wind up their affairs. Winding up of Budleigh Company.

37. Nothing in this Act or in the scheduled agreement shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertaking of the Budleigh Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertaking for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights aforesaid notwithstanding that the undertaking of the Budleigh Company is transferred to the Company as freely and fully in all respects as he was entitled to do before the passing of this Act. Saving for Postmaster-General.

38. The Company may apply for any of the purposes of this Act to which capital is properly applicable any moneys which by any previous Act or Acts they are authorised to raise by shares stock debenture stock or borrowing and which are not by the Act or Acts under which they are authorised to be raised Power to apply funds.

A.D. 1911. — made applicable to any special purposes or which being so made applicable are not required for such special purposes.

Recovery of demands.

39. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Provision as to general Railway Acts.

40. Nothing in this Act contained shall exempt the Company or the railways of the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Costs of Act.

41. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act. A.D. 1911.

ARTICLES OF AGREEMENT made the ninth day of February one thousand nine hundred and eleven between THE BUDLEIGH SALTERTON RAILWAY COMPANY (hereinafter called "the Budleigh Company") of the one part and THE LONDON AND SOUTH WESTERN RAILWAY COMPANY (hereinafter called "the South Western Company") of the other part.

1. The South Western Company shall in the ensuing session of Parliament apply for powers enabling the Budleigh Company to make and the South Western Company to accept as from the first day of January one thousand nine hundred and twelve a transfer of the undertaking of the Budleigh Company in consideration of the South Western Company assuming liability in respect of the existing terminable mortgage debentures of the Budleigh Company for the nominal amount of three thousand pounds (being the only amount issued of the authorised loan capital of twenty thousand pounds) and the interest thereon at three pounds per cent. as from the date of transfer and also of the issue by the South Western Company to the Budleigh Company of one hundred pounds nominal amount of three pounds per cent. consolidated debenture stock in exchange for each one hundred pounds nominal amount of the Budleigh Company's authorised and existing total share capital of sixty thousand pounds and in like proportion for any greater or less sum than one hundred pounds of such share capital and the Budleigh Company will consent to and at the request and cost of the South Western Company will support the application and if the necessary powers be obtained will make an absolute transfer of the undertaking of the Budleigh Company to the South Western Company on the terms in this article mentioned.

2. All deeds documents plans minute books books of account vouchers papers and other documents of the like nature belonging to the Budleigh Company shall on or before the date of vesting of the undertaking of the Budleigh Company in the South Western Company be handed over to and be under the control and custody of that Company.

3. This agreement is conditional upon the consent of the shareholders of the respective companies being obtained thereto:

4. This agreement is intended to be confirmed by Act of Parliament and is made subject to such alterations as Parliament may see fit to

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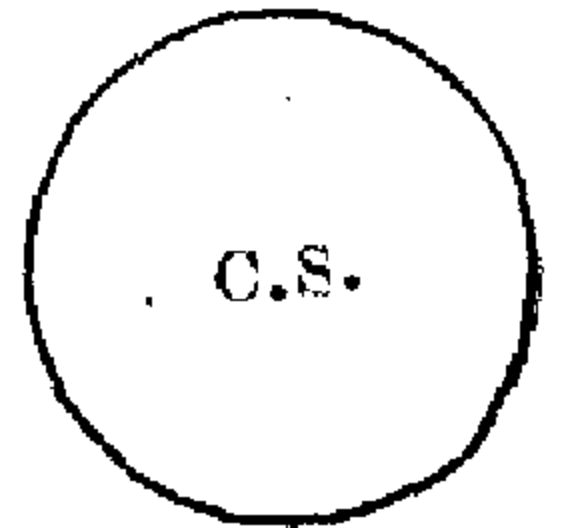
[Ch. lxxv.] *South Western Railway Act, 1911.* [1 & 2 GEO. 5.]

A.D. 1911. make therein but in the event of either House of Parliament making any material alteration therein either party may withdraw the agreement.

As witness the common seals of the parties hereto.

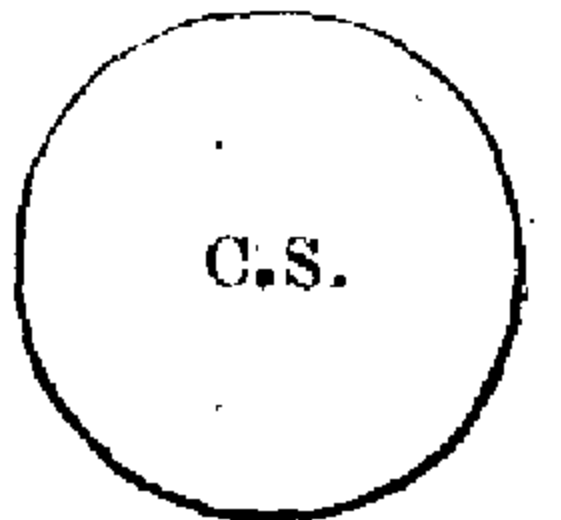
The common seal of the Budleigh Salterton Railway }
Company affixed hereto in the presence of

HUGH W. DRUMMOND }
CLINTON } Directors.



The common seal of the London and South Western }
Railway Company affixed hereto in the presence of }

G. KNIGHT Secretary.



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